

Smt. Mona Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 February 2017 · Writ-C No. 8918 of 2017 · Writ - C No. 8918 of 2017
· **Writ dismissed; relegated to CGRF under clause 7.10; restoration on ₹50,000 deposit**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ against rejection of a Clause 6.5 bill-correction application, holding that the consumer's remedy is a complaint before the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Restoration of supply was directed within a week of filing that complaint if ₹50,000 is deposited with the licensee.

FACTUAL SUMMARY

Smt. Mona Singh, pursuant to an earlier order dated 16 December 2016 in Writ Petition No. 59222 of 2016, applied under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for correction of her electricity bills. That application was rejected on 4 January 2017. She challenged the rejection by this writ petition. The Division Bench heard counsel and disposed of the matter on forum, without examining the bills on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-after-6.5-rejection

HOLDING

After rejection of a Clause 6.5 application for correction of electricity bills, the consumer's remedy is a complaint before the Electricity Consumer Grievance Redressal Forum under Clause 7.10; a writ against the 6.5 rejection is not the proper course. The petition was dismissed, with a direction that if a Clause 7.10 complaint is filed and ₹50,000 is deposited with the licensee, the connection shall be restored within a week. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND SUSTAINABILITY OF THE 4 JANUARY 2017 CLAUSE 6.5 REJECTION ON MERITS

Relegated to the Consumer Grievance Redressal Forum under Clause 7.10 ¶ 1